

10, 12, & 14.) In her Opposition, Plaintiff argues she suffered “the damage of the loss of a car and frustration of the initial efforts to fix it.” Plaintiff, however, fails to submit any admissible evidence that she sustained damages due to Defendant’s misconduct.

Both parties cite to *Meyer v. Sprint Spectrum L.P.* (2009) 45 Cal.4th 634, in their pleadings. In *Meyer*, the California Supreme Court held that the mere employment of an unlawful practice is insufficient to authorize a CLRA suit, instead a plaintiff must show that the practice has resulted in some kind of “tangible increased cost or burden to the consumer.” (*Id.* at 643.) Plaintiff presents no evidence to support her contention that, despite the settlement from State Farm, she sustained a tangible increased cost or burden. Speculation is not evidence that can be utilized in opposing a motion for summary judgment. (*Stokes v. Forty Nines Stadium Management Co., LLC* (2024) 107 Cal.App.5th 1199, 1214.)

The 4th, 5th, and 6th Causes for violation of Civil Code section 3070 – The Complaint frames the issue as to the fourth, fifth, and sixth causes of action as follows: Defendant improperly showed up without being called and caused a vehicle to be towed to create a lienhold interest; Defendant failed to disclose fees and charges; and Defendant charged excessive fees and failed to accept credit cards.

As to the fourth, fifth, and sixth causes of action in the Complaint, Defendant argues the deemed admissions establish that State Farm permitted the tow; State Farm consented to the charges; and Plaintiff paid no towing or storage fees. Defendant argues Plaintiff cannot establish damages because Plaintiff paid no towing or storage fees and suffered no reduction in settlement proceeds.

Here, it is an undisputed material fact that Plaintiff did not pay any towing or storage fees to the Defendant. (UMF, 9-10). Defendant contends there can be no other damages alleged by the Plaintiff as State Farm paid a settlement for the total loss of the car. As such, Defendant met his initial burden of showing no material facts in dispute as to the element of damages and we turn to Plaintiff’s burden to show a triable issue of fact exists.

Here, Plaintiff argues that “the settlement funds were not sufficient to properly replace the vehicle,” but she fails to present any evidence of such. Speculation is not evidence that can be utilized in opposing a motion for summary judgment. (*Stokes v. Forty Nines Stadium Management Co., LLC*, *supra*, 107 Cal.App.5th at p. 1214.)

18. *Cobos, et al, v. National General Insurance Co., et al*, Case No. CIVDS1914609
Motion to Amend Class Certification Order
8/3/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion to amend the class certification order and reduce the number of representative plaintiffs set forth therein.

A failure to oppose a motion may be deemed consent to the granting of the motion. (Rules of Court, rule 8.54(c); also *Giles v. Horn* (2002) 100 Cal.App.4th 206,228 [challenge to judicial notice motion forfeited by failure to file opposition].) Further, the courts have broad authority to manage class action proceedings as part of their inherent supervisory powers over class litigation. (See *Espejo v. The Copley Press, Inc.* (2017) 13 Cal.App.5th 329, 358.) Here, movants have set out that the proposed amendment will streamline litigation and preserve both party and judicial resources.
